

Somil Ispat (Pvt.) Ltd. v. U.P. Power Corporation Limited And Others

High Court of Judicature at Allahabad · Division Bench · 21 August 2026 · Writ - C No. 35388 of 2011 · **Writ dismissed in default; earlier interim order vacated.**

HEADNOTE

A writ against a demand for additional security, which an earlier Bench had framed under s.47 of the Electricity Act, 2003 read with clause 4.20 of the U.P. Electricity Supply Code, 2005, was dismissed in default when none appeared for the petitioner among oldest pending cases. The earlier interim arrangement was vacated, with liberty to seek recall within one month. Whether additional security was payable, and whether a prepaid scheme would avoid it, was not decided.

FACTUAL SUMMARY

Somil Ispat (Pvt.) Ltd. challenged U.P. Power Corporation Limited's demand for additional security. In July 2011 the Court treated the writ as a security, not recovery, matter. A Division Bench noted hundreds of similar petitions were pending, recorded the prepaid-meter contention, called for a counter-affidavit, continued an interim arrangement on security other than cash or bank guarantee, and connected the writ with like matters. In 2026, after the petitioner's counsel died, it was listed among oldest pending cases.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal in default of additional-security writ

HOLDING

The writ petition challenging a demand for additional security was dismissed in default for non-appearance of the petitioner at a listing of oldest pending cases. Any earlier interim order stood vacated. A party aggrieved was left free to move a recall application within one month. The Court did not decide the additional-security claim. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY IS PAYABLE UNDER S.47 OF THE ELECTRICITY ACT, 2003 READ WITH CLAUSE 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND WHETHER A PREPAID SCHEME DISPENSES WITH ADDITIONAL SECURITY

The 7 July 2011 Bench identified that pairing, recorded the prepaid-meter contention and the licensee's reply that no prepaid meter was available in the State, and continued an interim arrangement, but the petition was later dismissed in default without a merits decision.